

STATE OF NEW YORK

563--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the general business law, in relation to requiring policies for the use of automatic license plate reader systems

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraphs 15 and 16 of paragraph (a) of subdivision 3
2 of section 94-a of the executive law, subparagraph 15 as amended and
3 subparagraph 16 as added by chapter 374 of the laws of 2022, are amended
4 and a new subparagraph 17 is added to read as follows:

5 (15) create an internet website or webpage pursuant to section three
6 hundred ninety-c of the general business law, as added by chapter five
7 hundred nine of the laws of two thousand seven; ~~and~~

8 (16) exercise such powers and duties granted to the secretary by arti-
9 cle sixteen of the energy law as the secretary may direct, including,
10 but not limited to: consult with such president of the New York state
11 energy research and development authority in connection with investi-
12 gations conducted by such president pursuant to article sixteen of the
13 energy law; make determinations relating to compliance by products with
14 the standards adopted pursuant to article sixteen of the energy law;
15 order the immediate cessation of any distribution, sale or offer for
16 sale, import, or installation of any product that does not meet such
17 standards; and impose civil penalties as contemplated by article sixteen
18 of the energy law~~[-]~~; and

19 (17) (i) Develop, maintain and disseminate a minimum standards policy
20 governing the use of automatic license plate reader systems by non-law
21 enforcement entities and non-government entities. The minimum standards

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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policy shall include, but not be limited to, provisions on permissible uses of the automatic license plate reader technology, data sharing and dissemination, prohibited uses, record retention and management, and training. For purposes of this section, "automatic license plate reader system" shall mean a system of one or more mobile or fixed high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data. The department of state shall post such policy on its website, in a location accessible to the public and all non-law enforcement entities and non-government entities using automatic license plate readers in the state.

(ii) Recommend to the governor, the temporary president of the senate and the speaker of the assembly, rules and regulations with respect to the establishment and implementation on an ongoing basis of a training program for all current and new employees of non-law enforcement entities and non-government entities regarding the policies and procedures established pursuant to this paragraph, along with recommendations for periodic retraining of such employees.

§ 2. The general business law is amended by adding a new section 399-zzzzzz to read as follows:

§ 399-zzzzzz. Disclosure of the minimum standards policy for automatic license plate readers by non-law enforcement entities and non-government entities. All non-law enforcement agencies and non-government entities using automatic license plate reader systems shall conspicuously post the minimum standards for the use of automatic license plate reader systems policy, promulgated pursuant to subparagraph seventeen of paragraph (a) of subdivision three of section ninety-four-a of the executive law, on its website, or if such non-law enforcement entity or non-government entity does not maintain a website, in its main office. Such policy shall be made available to the public upon request. For purposes of this section, "automatic license plate reader system" shall mean a system of one or more mobile or fixed high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data. If an entity using automatic license plate reader systems is both a non-law enforcement and non-government entity such entity shall only need to complete the requirements of this section once.

§ 3. This act shall take effect one year after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.